

Smt.Gaura Bai vs Butul on 26 March, 2015

SA-2466-2005
(SMT.GAURA BAI Vs BUTUL)

26-03-2015

Shri Saket Agrawal, learned counsel for the appellants.

Heard on the question of admission.

Appeal seems to be arguable, therefore, admitted for final hearing on the following substantial question of law :-

â Whether lower appellate Court committed error to grant the decree refusing the claim of defendant nos.1 and 2 because they are not the legitimate child of Khojwa, however, such finding can be sustained under Section 16 of the Hindu Marriage Act ?â

Issue notice to the respondents of final hearing on payment of P.F. within a week, returnable within 6 weeks.

(J.K. MAHESHWARI) JUDGE